Draft Ballot Argument
Public Works Contracting
Charter Section 1309

Arguments in support or opposition of the proposed laws are the opinions of the authors.

Argument in Favor of Measure ☒
[or]
Argument Against Measure ☐

[Pursuant to §9282: Maximum 300 words]

Vote YES to Modernize Sunnyvale's Public Works Contracting.

Sunnyvale's rules for building public infrastructure have not kept pace with modern times. Under current Charter constraints, the City is forced to use an outdated "lowest-bid" method that **separates project design from construction**. This rigid requirement often results in communication gaps, costly mid-project change orders, and frustrating construction delays.

This measure updates Charter Section 1309 to grant Sunnyvale access to the same flexible, modern project delivery methods already authorized by California State Law and successfully used by nearby cities and school districts.

Why a YES Vote Makes Sense:

- **Saves Taxpayer Money:** By allowing modern delivery models like "Design-Build," the City can combine design and construction into a single, unified contract. This means the team that designs the project builds it, significantly reducing errors, change orders, and budget overruns.
- **Speeds Up Projects:** Combining design and construction means critical civic improvements and infrastructure projects get completed much faster, minimizing disruption to our community.
- **Prioritizes Quality and Value:** Sunnyvale will finally be allowed to consider a contractor's specialized qualifications, proven track record, and technical expertise—not just the lowest bid—ensuring high-quality infrastructure built to last.

Strict Safeguards Remain Intact

This measure does **not** eliminate competitive bidding. Traditional lowest-bid tracking will still be used for everyday maintenance projects. For complex projects, any alternative method must be explicitly authorized by the City Council on a case-by-case basis under strict, transparent ordinances.

Following an intensive, multi-year review, the independent, citizen-led Charter Review Committee and your City Council recommended this upgrade. Let's build a more efficient, cost-effective Sunnyvale.

Vote YES for higher quality infrastructure at lower cost.